

HOUSE No. 907

The Commonwealth of Massachusetts

PRESENTED BY:

Tackey Chan

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act relative to DCR yacht club fees reflecting waterway access.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Tackey Chan</i>	<i>2nd Norfolk</i>	<i>1/15/2025</i>

HOUSE No. 907

By Representative Chan of Quincy, a petition (accompanied by bill, House, No. 907) of Tackey Chan relative to the lease of property used by non-profit yacht clubs and other non-profit organizations operating boating programs. Environment and Natural Resources.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act relative to DCR yacht club fees reflecting waterway access.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Section 1 of chapter 65 of the acts of 2010 is hereby amended by inserting
2 at the end of the first paragraph the following:- The survey of the parcel shall include navigable
3 channels and berthing/mooring areas on the water sheet. The survey shall establish a schedule for
4 maintenance of navigable waters from each boating facility.

5 SECTION 2. Section 2 of said chapter 65, is hereby amended by inserting after the first
6 sentence the following:- The Commissioner of capital asset management and maintenance and
7 the commissioner of conservation and recreation shall manage, operate, improve, repair and
8 maintain the land under water for the term of the lease for: (a) recreational boating waterside
9 access, (b) the protection of navigable waterways and channels.

10 SECTION 3. Said section 2 of said chapter 65 is hereby further amended by inserting
11 after the words “yacht and boating facilities identified in section 1” the following:- ; provided

12 however, the lessee has adequate access to navigable waters for recreational boating and
13 mooring, and there exists the capacity for water dependent uses.

14 SECTION 4. This act shall take effect upon its passage.